

cases cited by plaintiff relating to shortened statutes of limitations.

As to fees, while Hyundai does not view the issue as particularly problematic, the Court notes the CSA limits Hyundai's liability to \$500 or the total amount paid for connected services during the 12 months preceding a claim, "UNDER ANY THEORY (INCLUDING BUT NOT LIMITED TO FRAUD, MISREPRESENTATION, BREACH OF CONTRACT, PERSONAL INJURY, OR PRODUCTS LIABILITY)." (Rao Decl., Ex. B, ¶11E ["THE MAXIMUM AGGREGATE LIABILITY OF HYUNDAI"].) The fee provision, as well as the aforementioned limitation on liability, are substantively unconscionable in this context.

As to the statute of limitations, the Court finds plaintiff's authorities persuasive. In *Fisher v. MoneyGram International, Inc.* (2021) 66 Cal.App.5th 1084, the appellate court held that a provision reducing a four-year statute of limitations to one-year was substantively unconscionable. Song-Beverly Act warranty claims are subject to a four-year statute of limitations. (*Krieger v. Nick Alexander Imports, Inc.* (1991) 234 Cal.App.3d 205, 213-215.) Shortening the limitations period to one year significantly limits the period to bring claims. Thus, the facts here are analogous to the facts at issue in *Fisher*.

Further, in *Gostev v. Skillz Platform, Inc.* (2023) 88 Cal.App.5th 1035, the court pointed to several nonmutual terms, "including, most notably, the requirement that only the plaintiff arbitrate his claims against the defendant, in its determination that the agreement was substantively unconscionable." The comparison is apt. Here, the CSA only limits Hyundai's monetary liability and only limits the time limits on claims brought by plaintiff.

Both the shortened one-year statute of limitations provision, as well as the fee recovery provisions and one-sided limitation on liability cause the CSA to be permeated by substantively unconscionable terms.

Accordingly, the CSA's arbitration agreement is unconscionable and incapable of severance.

11. 9:00 AM CASE NUMBER: L23-06585

CASE NAME: ALEXANDER DRAKE VS. GURPREET CHANDHOKE

***HEARING ON MOTION IN RE: NTC AND MTN TO AMEND JUDGMENT TO ADD GURPREET CHANDHOKE ET AL AS ADDITIONAL DEFT AND ASSIGNMENT ORDER**

FILED BY:

TENTATIVE RULING:

The unopposed motion of Assignee of Record George Sommers to Amend Judgment to Add Gurpreet Chandhoke aka Gurprit Chandhoke as an additional debtor is **denied without prejudice**. There does not appear to be a proof of service of this motion.

12. 9:00 AM CASE NUMBER: MSC22-00069

CASE NAME: ABBUSHI VS AHLUWALIA

***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL**

FILED BY:

TENTATIVE RULING:

ALL PARTIES TO APPEAR FOR TRIAL SETTING CONFERENCE AT 8:30 A.M.